

06-compliance-annex

Pemberton Engineering Ltd. — Indirect MRO Framework — 3-Year Term

Document 06 of 7 Pemberton ref: PEL/PROC/2026-RFQ-073
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This Annex sets out the compliance and ESG obligations applicable to any Supplier under the framework. It forms part of the Master Supply Agreement (Document 02) and is reinforced by the GTCs (Document 05).

1. Modern Slavery and Human Rights

1.1 Supplier shall comply with the Modern Slavery Act 2015 and equivalent legislation in any jurisdiction in which it operates. Supplier shall provide, on or before the Effective Date and annually thereafter, a copy of its current modern slavery statement signed at director level.

1.2 Supplier shall conduct due diligence on its own supply chain proportionate to risk, and shall maintain records of such due diligence for production on request.

1.3 Where Supplier identifies any instance of forced labour, child labour, or other human-rights abuse in its supply chain, Supplier shall notify Buyer within five (5) Business Days and provide a remediation plan within ten (10) Business Days.

2. Anti-Bribery and Anti-Corruption

2.1 Supplier shall comply with the Bribery Act 2010, the US Foreign Corrupt Practices Act, and all other applicable anti-bribery laws.

2.2 Supplier shall maintain “adequate procedures” within the meaning of section 7 of the Bribery Act and shall provide evidence of such procedures on request.

2.3 No payment, gift, hospitality, or other thing of value shall be offered to any Buyer personnel or to any public official in connection with this Agreement, save for hospitality of nominal value (under £50 per person per occasion) provided in accordance with Buyer’s Gifts and Hospitality Policy.

3. Sanctions and Export Controls

3.1 Supplier represents and warrants that neither it, its Affiliates, nor any of its personnel, sub-suppliers or business partners involved in performing this Agreement is:

1. listed on any sanctions list maintained by the United Nations, the European Union, the United Kingdom (HM Treasury OFSI), the United States (OFAC), or any other competent authority; or
2. located in, organised under the laws of, or substantially operating from any Sanctioned Jurisdiction.

3.2 Supplier shall not export, re-export, or otherwise transfer any Goods to any Sanctioned Person or Sanctioned Jurisdiction.

3.3 Supplier shall notify Buyer immediately on becoming aware of any change in its sanctions status.

4. Environmental Management

4.1 Supplier shall maintain an environmental management system certified to ISO 14001:2015 or an equivalent recognised standard. Evidence of current certification shall be provided on or before the Effective Date and at each renewal.

4.2 Supplier shall measure, report, and reduce greenhouse gas emissions in accordance with the Greenhouse Gas Protocol Corporate Standard, covering Scope 1, Scope 2 (market-based and location-based), and material Scope 3 categories.

4.3 Supplier shall provide Buyer with a Scope 3 emissions attribution for Goods supplied under this Agreement on an annual basis, using a methodology Buyer reasonably approves.

5. Sustainability and Net Zero

5.1 Supplier shall, by no later than the third anniversary of the Effective Date, have a published net-zero target validated under the Science Based Targets initiative (SBTi) or an equivalent framework.

5.2 Where any Goods qualify as “low-carbon” or carry any sustainability claim, Supplier shall be able to substantiate the claim with reference to a recognised standard.

6. Data Protection

6.1 Supplier shall comply with the UK GDPR, the Data Protection Act 2018, and the EU GDPR (where applicable to the supply).

6.2 Where Supplier processes personal data on Buyer’s behalf in performing this Agreement, the Data Processing Annex (available from Buyer’s Data Protection Officer) shall apply. The Data Processing Annex is incorporated into this Agreement by reference and may be updated by Buyer from time to time.

Supplier accepts the Data Processing Annex on its current form from time to time without further negotiation.

6.3 Supplier shall notify Buyer within twenty-four (24) hours of becoming aware of any personal-data breach affecting Buyer’s data.

7. Health and Safety

7.1 Supplier and its personnel shall comply with all Buyer site rules and shall complete Buyer's site induction prior to commencing any work on Buyer's premises.

7.2 Supplier shall notify Buyer of any incident, near-miss or RIDDOR-reportable event within twenty-four (24) hours.

8. Cyber Security

8.1 Supplier shall maintain a cyber-security posture appropriate to the nature of the services provided, including (i) Cyber Essentials Plus certification or equivalent; (ii) multi-factor authentication on all accounts with access to Buyer data; (iii) encryption at rest and in transit; (iv) tested incident-response plan; (v) annual third-party penetration test of any internet-facing systems used to support the supply.

8.2 Supplier shall notify Buyer of any actual or suspected cyber-security incident affecting Supplier's ability to perform this Agreement, or affecting any Buyer data, within twelve (12) hours of becoming aware.

9. Annual ESG Attestation

9.1 No later than 30 April in each calendar year of the Term, Supplier shall provide Buyer with an ESG attestation signed at director level confirming compliance with this Annex during the preceding calendar year, in the form set out in Appendix C to this Annex.

9.2 The attestation shall include:

1. Modern slavery statement reference and date;
2. Confirmation of Bribery Act adequate-procedures self-assessment outcome;
3. Sanctions screening attestation;
4. ISO 14001 (or equivalent) certificate reference and expiry;
5. Scope 1+2 emissions for the prior calendar year, plus material Scope 3 categories;
6. Net-zero target status (with SBTi validation status if applicable);
7. Any material non-compliance during the prior year, with remediation status.

10. Audit Cooperation

10.1 Supplier shall cooperate fully with any audit conducted by Buyer or by an independent third party of Buyer's nomination, in respect of the matters in this Annex.

10.2 Audits in respect of this Annex are at Supplier's cost regardless of outcome.

11. Failure to Comply

11.1 Failure by Supplier to comply with this Annex shall constitute material breach of the Agreement for the purposes of clause 18.2 of the MSA.

11.2 Without limitation, Buyer may suspend Orders, withhold payment, terminate the Agreement, and seek damages in the event of any material non-compliance.

Appendix C — ESG Attestation Form

(Bidders to confirm willingness to sign in the form set out below.)

I, [Director Name], a Director of [Bidder Name], confirm on behalf of [Bidder Name] that during the calendar year ending 31 December [YEAR] [Bidder Name]:

1. has complied with the Modern Slavery Act 2015 (statement at [URL], updated [DATE]);
2. maintains "adequate procedures" within the meaning of section 7 of the Bribery Act 2010, last reviewed [DATE];
3. has screened all relevant personnel, sub-suppliers, and business partners against the sanctions lists identified in clause 3 of the Compliance and ESG Annex, and is in compliance therewith;
4. maintains ISO 14001 certification (certificate [REF], expiring [DATE]);
5. has reported Scope 1+2 emissions of [TONNES CO2e] (market-based) for the year, and material Scope 3 categories totalling [TONNES CO2e];
6. has [a validated SBTi net-zero target / a published net-zero commitment / no published target] and intends to achieve net zero by [YEAR]; and

7. [confirms there has been no material non-compliance with the Compliance and ESG Annex during the year / discloses the following material non-compliance: ...].

Signed: Date: Position: